

HOUSE No. 2836**The Commonwealth of Massachusetts**

PRESENTED BY:

Sean Garballey and Daniel Cahill*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to Parkinson's disease disability and death in firefighters.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Sean Garballey</i>	<i>23rd Middlesex</i>	<i>1/16/2025</i>
<i>Daniel Cahill</i>	<i>10th Essex</i>	<i>1/16/2025</i>
<i>Marcus S. Vaughn</i>	<i>9th Norfolk</i>	<i>1/23/2025</i>
<i>John J. Marsi</i>	<i>6th Worcester</i>	<i>1/23/2025</i>
<i>Christopher Richard Flanagan</i>	<i>1st Barnstable</i>	<i>1/23/2025</i>
<i>Angelo J. Puppolo, Jr.</i>	<i>12th Hampden</i>	<i>1/23/2025</i>
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>1/23/2025</i>
<i>David F. DeCoste</i>	<i>5th Plymouth</i>	<i>1/23/2025</i>
<i>Paul K. Frost</i>	<i>7th Worcester</i>	<i>1/23/2025</i>
<i>Paul McMurtry</i>	<i>11th Norfolk</i>	<i>1/23/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>1/23/2025</i>
<i>Dennis C. Gallagher</i>	<i>8th Plymouth</i>	<i>1/23/2025</i>
<i>Rodney M. Elliott</i>	<i>16th Middlesex</i>	<i>1/23/2025</i>
<i>Michael J. Soter</i>	<i>8th Worcester</i>	<i>1/23/2025</i>
<i>Joseph W. McGonagle, Jr.</i>	<i>28th Middlesex</i>	<i>1/23/2025</i>
<i>Brian W. Murray</i>	<i>10th Worcester</i>	<i>1/23/2025</i>
<i>Joseph D. McKenna</i>	<i>18th Worcester</i>	<i>1/27/2025</i>
<i>Steven Ultrino</i>	<i>33rd Middlesex</i>	<i>1/27/2025</i>

<i>Kimberly N. Ferguson</i>	<i>1st Worcester</i>	<i>1/27/2025</i>
<i>Mark D. Sylvia</i>	<i>10th Bristol</i>	<i>1/27/2025</i>
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>1/27/2025</i>
<i>Hannah Kane</i>	<i>11th Worcester</i>	<i>1/28/2025</i>
<i>Erika Uyterhoeven</i>	<i>27th Middlesex</i>	<i>1/29/2025</i>
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	<i>1/31/2025</i>
<i>Donald R. Berthiaume, Jr.</i>	<i>5th Worcester</i>	<i>2/3/2025</i>
<i>Paul J. Donato</i>	<i>35th Middlesex</i>	<i>2/3/2025</i>
<i>Samantha Montaño</i>	<i>15th Suffolk</i>	<i>2/4/2025</i>
<i>Jacob R. Oliveira</i>	<i>Hampden, Hampshire and Worcester</i>	<i>2/10/2025</i>
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>2/10/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>2/12/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>2/13/2025</i>
<i>James Arciero</i>	<i>2nd Middlesex</i>	<i>2/24/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>2/24/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>2/26/2025</i>
<i>Antonio F. D. Cabral</i>	<i>13th Bristol</i>	<i>3/6/2025</i>
<i>John C. Velis</i>	<i>Hampden and Hampshire</i>	<i>3/10/2025</i>
<i>Jonathan D. Zlotnik</i>	<i>2nd Worcester</i>	<i>3/14/2025</i>
<i>Bridget Plouffe</i>	<i>9th Plymouth</i>	<i>3/19/2025</i>
<i>Ryan M. Hamilton</i>	<i>15th Essex</i>	<i>3/31/2025</i>
<i>Thomas M. Stanley</i>	<i>9th Middlesex</i>	<i>3/31/2025</i>
<i>Nick Collins</i>	<i>First Suffolk</i>	<i>3/31/2025</i>
<i>Adrian C. Madaro</i>	<i>1st Suffolk</i>	<i>4/2/2025</i>
<i>Christopher Hendricks</i>	<i>11th Bristol</i>	<i>4/2/2025</i>
<i>Tara T. Hong</i>	<i>18th Middlesex</i>	<i>4/4/2025</i>
<i>Donald H. Wong</i>	<i>9th Essex</i>	<i>4/4/2025</i>
<i>Colleen M. Garry</i>	<i>36th Middlesex</i>	<i>4/4/2025</i>
<i>David Henry Argosky LeBoeuf</i>	<i>17th Worcester</i>	<i>4/7/2025</i>
<i>Richard G. Wells, Jr.</i>	<i>7th Norfolk</i>	<i>4/8/2025</i>
<i>John R. Gaskey</i>	<i>2nd Plymouth</i>	<i>4/9/2025</i>
<i>Thomas W. Moakley</i>	<i>Barnstable, Dukes and Nantucket</i>	<i>4/11/2025</i>
<i>Michelle L. Badger</i>	<i>1st Plymouth</i>	<i>4/22/2025</i>
<i>Jessica Ann Giannino</i>	<i>16th Suffolk</i>	<i>5/30/2025</i>
<i>Tackey Chan</i>	<i>2nd Norfolk</i>	<i>6/3/2025</i>
<i>Kathleen R. LaNatra</i>	<i>12th Plymouth</i>	<i>6/6/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>8/21/2025</i>

HOUSE No. 2836

By Representatives Garballey of Arlington and Cahill of Lynn, a petition (accompanied by bill, House, No. 2836) of Sean Garballey, Daniel Cahill and others relative to Parkinson's disease disability and death of certain firefighters and other public safety officers in the contributory retirement plan for public employees. Public Service.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2522 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to Parkinson's disease disability and death in firefighters.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 26 of chapter 31 of the General Laws as appearing in the 2022
2 Official Edition, is hereby amended by striking out, in line 119, the words "and ninety-four B"
3 and inserting in place thereof the following words:

4 ",ninety-four B and ninety-four C."

5 SECTION 2. Chapter 32 of the General Laws are hereby amended by inserting after
6 section 94B the following section:-

7 Section 94C. (1) Notwithstanding the provisions of any general or special law to the
8 contrary affecting the non-contributory or contributory retirement system, any condition of

9 impairment of health caused by Parkinson's Disease, resulting in total or partial disability or
10 death to a uniformed member of a paid fire department, or a member of the state police assigned
11 to the fire investigation unit of the department of fire services, or a member of the state police K9
12 unit, or to any permanent crash crewman, crash boatman, fire controlman or assistant fire
13 controlman employed at the General Edward Lawrence Logan International Airport, members of
14 the 104th fighter wing fire department or members of the Joint Base Cape Cod fire department,
15 shall, if he successfully passed a physical examination on entry into such service or subsequent
16 to such entry, which examination failed to reveal any evidence of such condition, be presumed to
17 have been suffered in the line of duty, unless it is shown by a preponderance of the evidence that
18 non-service connected risk factors or non-service connected accidents or hazards undergone, or
19 any combination thereof, caused such incapacity.

20 (2) The provisions of this section shall not apply to any person serving in such positions
21 for fewer than five years at the time that such condition is first discovered, or should have been
22 discovered. Any person first discovering any such condition prior to or within five years from the
23 date on which such person has reached the maximum retirement age shall be eligible to apply for
24 benefits hereunder, and such benefits, if granted, shall be payable as of the date on which the
25 employee last received regular compensation. The provisions of this section shall not apply to
26 any person serving in such position unless such person shall first establish that he has regularly
27 responded to calls of fire or their investigation at the scene during some portion of the period of
28 his service in such position.

29 (3) Nothing herein shall preclude a member from applying for and receiving benefits
30 under section seven or section nine, subject to the provisions of said sections.

SECTION 3. Section 100 of chapter 32 of the General Laws as appearing in the 2022 Official Edition, is hereby amended by striking out, in line 81, the words "and ninety-four B" and inserting in place thereof the following words:

","ninety-four B and ninety-four C."

SECTION 4. Section 100A of chapter 32 of the General Laws as appearing in the 2022 Official Edition, is hereby amended by striking out, in line 34, the words "and 94B" and inserting in place thereof the following words:

","94B and 94C."

SECTION 5. The provisions of section two shall not be construed to affect the interpretation of the provisions of sections ninety-four, ninety-four A or ninety-four B of chapter thirty-two of the General Laws.

SECTION 6. The provisions of this act shall be effective in every retirement system established by or operating under the provisions of chapter thirty-two of the General Laws or under the similar provisions of any other general or special law, and for every governmental unit which is a member of such retirement system, notwithstanding the provisions of section twenty-seven C of chapter twenty-nine of the General Laws.

SECTION 7. The provisions of this act shall apply only to a person actively employed as a uniformed member of a paid fire department, or a member of the state police assigned to the fire investigation unit of the department of fire services, or a member of the state police K9 unit, or to any permanent crash crewman, crash boatman, fire controlman or assistant fire controlman employed at the General Edward Lawrence Logan International Airport, members of the 104th

52 fighter wing fire department or members of the Joint Base Cape Cod fire department on or after
53 the date exactly 5 years prior to the date this law becomes effective.